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LOS ANGELES SUPERIOR
COURT

NORTH VALLEY DISTRICT

DEPARTMENT F-51

SEPTEMBER
8, 2026

DEMURRER WITH
MOTION TO STRIKE

Los
Angeles Superior Court Case # 26CHCV01215

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Demurrer with Motion to
Strike Filed: 8/3/26

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MOVING PARTY: Defendant Amanda Clark ("Defendant")

RESPONDING PARTY: Plaintiff
Brianna Garcia; Philip Garcia; and Paola Garcia (collectively, "Plaintiffs")

NOTICE: OK

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RELIEF REQUESTED: Defendant

demurs to Plaintiffs' entire complaint, and seeks an order striking allegations relating to punitive damages, attorney fees, statutory damages, and emotional distress damages from the complaint.

TENTATIVE RULING: The demurrer is sustained with 30 days leave to amend, and the motion to strike is moot.

REQUEST FOR JUDICIAL NOTICE: Defendant's request for judicial notice is granted.

BACKGROUND¿

This is an emotional distress action brought by Plaintiffs, a minor student at Saugus High School, in Santa Clarita, California, and her parents, against Defendant, a teacher and softball coach at Saugus High School. (Compl. ¶¶ 1–5.) Plaintiffs allege that in March to May 2024, Defendant and her minor daughter ("Brianna C.") engaged in conduct to exclude and shun Plaintiff Brianna G. from the softball team, and vandalize Plaintiffs' residence, in retaliation to Brianna G.'s participation in a formal complaint submitted against Defendant. (Id. at ¶¶ 10–24.)

On 3/25/26, Plaintiffs filed their complaint, alleging against Defendant the following causes of action: (1) Intentional Infliction of Emotional Distress; (2) Negligent Infliction of Emotional Distress; (3) Retaliation under Education Code § 44114; (4) Civil Conspiracy; and (5) Failure to Ensure Safe School Environment under Education Code § 200.

On 8/3/26, Defendant filed the instant demurrer and motion to strike. On 8/24/26, Plaintiffs filed their oppositions. On 8/31/26, Defendant filed her reply.

DEMURRER

As a general matter, a party may respond to a pleading against it by demurrer on the basis of any single or combination of eight enumerated grounds, including that “the pleading does not state facts sufficient to constitute a cause of action” and is uncertain, meaning “ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subds. (e) and (f).) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

“A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Here, Defendant demurs to Plaintiffs’ entire complaint on the basis that they fail to allege facts sufficient to state any of the causes of action therein, and the complaint is fatally uncertain.

I.

Meet-and-Confer

Before filing its demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd. (a).) “If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (Id. at subd. (a)(2).)

Here, Defendant’s counsel declares that on 7/23/26, she met and conferred telephonically with Plaintiffs’ counsel regarding the issues raised in the instant demurrer and motion to strike, but the parties were

unable to come to an informal resolution. (Decl. of Nancy P. Doumanian ¶¶ 4–8.) Therefore, the Court finds that counsel has satisfied the preliminary meet and confer requirements of Code of Civil Procedure section 430.41, subdivision (a).

II.

Government Claims Presentation

Here, as a preliminary matter, Defendant argues that Plaintiffs' claims are subject to demurrer because they have not alleged compliance with the Government Claims Act, which typically requires written claims for damages against a public entity to be timely presented to that entity for resolution prior to filing suit. (Gov. Code § 900 et seq.; Gov. Code § 911.2, subd. (a).) With exceptions, "a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Gov. Code § 820, subd. (a).)

Defendant

argues that here, "Plaintiffs' own allegations establish that every challenged act arose solely from Defendant Clark's duties as a public school teacher and softball coach." (Dem. 7:23–25.) However, "the Complaint contains no allegation whatsoever that Plaintiffs timely presented a government claim to the William S. Hart Union High School District; received written rejection of any claim; complied with Government Code section 945.4; sought or obtained leave to present a late claim; or are otherwise excused from compliance with the Government Claims Act." (Dem. 7:14–17.)

In

opposition, Plaintiffs argue that "the Complaint alleges employment as background; it does not allege that every later act was authorized, undertaken to serve the District, or within Clark's job duties." (Dem. Opp. 4:8–9, citing Compl. ¶ 8 ["Plaintiffs allege that Brianna C. committed willful acts, including defamatory statements, harassment, intimidation, and participation in vandalism, which caused injury to Plaintiffs and that Defendant CLARK is therefore statutorily liable for those intentional torts of her minor child."].) Plaintiffs therefore assert that "at minimum, conflicting inferences preclude a pleading-stage determination that every injury resulted from in-scope conduct." (Id. at 4:14–15.) Plaintiffs further argue that "public-school status does not prove that the alleged family conspiracy, residential vandalism, ratification, or every retaliatory act was within Clark's employment." (Id. at

4:25–27.)

In reply,

Defendant argues that “the Complaint predicates Clark’s alleged wrongdoing upon the very authority she possessed as Brianna’s public-school teacher and school softball coach: Clark’s statements to the team, coaching rules, treatment of injured players, interactions with Brianna at school, alleged failure to protect Brianna, and alleged retaliation through the exercise of coaching authority.” (Dem. Reply 2:17–21.) “Plaintiffs cannot plausibly characterize the same exercise of governmental authority as purely private conduct when addressing the Government Claims Act and state action when attempting to manufacture a federal claim.” (Id. at 2:23–25.) The Court agrees.

Based on

the foregoing, the Court finds that to the extent that Plaintiffs allege that Defendant acted within the scope of her employment as a public school teacher and/or coach, Plaintiffs have failed to allege compliance with, or excuse from, the Government Claims Act. Accordingly, the demurrer is sustained on this basis.

III.

Uncertainty

Here, Defendant argues that

Plaintiffs’ complaint is uncertain pursuant to Code of Civil Procedure section 430.10, subdivision (f). Generally speaking, “demurrers for uncertainty are disfavored and thus are strictly construed because ambiguities can reasonably be clarified under modern rules of discovery. Such demurrers are granted only if the pleading is so incomprehensible that defendant cannot reasonably respond.” (Cal.Jur.3d § 137.) “Where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.” (Williams v. Beechnut Nutrition Corp. (2011) 185 Cal.App.3d 135, 139 fn.2.)

Here, Defendant asserts that “the

Complaint repeatedly combines Clark’s alleged conduct, her daughter’s alleged conduct, and the alleged conduct of unidentified students without clearly identifying which theory of direct, statutory, vicarious, or conspiratorial liability applies to each alleged act.” (Dem. 6:13–16.) “Defendant cannot

reasonably determine whether she is alleged personally to have vandalized the residence; whether she is alleged to have conspired before the vandalism; whether she allegedly learned of the vandalism afterward; whether liability for the social-media post is direct or solely statutory; which claims are asserted by all three Plaintiffs; which injuries were allegedly caused by which act; or which conduct allegedly occurred within the course and scope of public employment.” (Id. at 15:19–24.)

In opposition, Plaintiffs argue that “whether Clark personally participated in vandalism, agreed beforehand, or ratified afterward is properly resolved through discovery; alternative theories may be pleaded at this stage. ... The pleading is not so unintelligible that Defendant cannot respond.” (Dem. Opp. 8:15–18.) In reply, Defendant argues that “the problem is not an inability to understand the general narrative. The problem is that Plaintiffs combine distinct actors, conduct, injuries, and theories of liability in a manner that prevents Defendant from determining the precise basis upon which she is allegedly liable for each act.” (Id. at 10:1–4.)

The Court agrees with Defendant that Plaintiffs’ complaint is uncertain to the extent that it alleges direct or indirect liability for Defendant and/or her daughter’s specific conduct. The Court elaborates as set forth below. Accordingly, the demurrer is sustained on this basis.

IV.

Intentional Infliction of Emotional Distress

Plaintiffs’

first cause of action alleges Intentional Infliction of Emotional Distress against Defendant. “The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009.) “In order to avoid a demurrer, the plaintiff must allege with ‘great[] specificity’ the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Yau v. Santa

Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 160–161.)

Here,

Defendant argues that Plaintiffs “fail to allege facts showing that Defendant personally engaged in conduct so extreme and outrageous as to exceed all bounds usually tolerated in a civilized society. Moreover, plaintiffs Philip Garcia and Paola Garcia (student's parents) fail to allege that Defendant directed any extreme or outrageous conduct toward them, acted in their presence with knowledge that severe emotional distress was substantially certain to result, or otherwise engaged in conduct supporting a direct claim by either parent. The allegations improperly combine Defendant's alleged coaching statements and decisions with alleged social-media activity and vandalism attributed to Defendant's minor daughter and unidentified students.” (Dem. 8:20–28.)

In

opposition, Plaintiffs argue that “the Complaint pleads a course: the statement followed the complaint by two days; Clark's daughter targeted Brianna online four days later; the family home was vandalized; Clark allegedly knew, condoned, ratified, or agreed in the conduct; Clark then created rules that isolated injured players and privately confronted Brianna. (Compl. ¶¶ 10–21, 29–32, 55–58.) The alleged purpose was to punish, deter, and silence a minor student over whom Clark exercised authority. (Id. ¶¶ 48–51, 57.)” (Dem. Opp. 5:9–14.) Plaintiffs further argue that “severity also is pleaded factually: intimidation, isolation, extreme anxiety, impaired concentration, withdrawal from teammates, interference with academics and athletics, need for psychological support, and a school transfer before senior year.” (Id. at 5:16–18, citing Compl. ¶¶ 22, 33–35.)

In reply,

Defendant argues that “repetition of a conclusion does not supply the missing facts showing when Clark learned of the alleged conduct, what she knew beforehand, what agreement she supposedly made, what she did to further it, or how she participated in the vandalism. The pleading therefore still fails to allege facts establishing extreme and outrageous conduct personally committed by Clark with the intent to cause severe emotional distress or reckless disregard of that probability.” (Dem. Reply 6:24–7:1.)

As

addressed above, the Court finds that Plaintiffs combine allegations regarding Defendant's own conduct with allegations about Brianna C.'s conduct. To this

extent, the Court sustains the demurrer to Plaintiffs' first cause of action for uncertainty.

V.

Negligent Infliction of Emotional Distress

Plaintiffs'

second cause of action alleges Negligent Infliction of Emotional Distress against Defendant. "The negligent causing of emotional distress is not an independent tort, but the tort of negligence. The traditional elements of duty, breach of duty, causation, and damages apply. Whether a defendant owes a duty of care is a question of law." (Spates v. Dameron Hosp. Ass'n (2003) 114 Cal.App.4th 208, 213.) In "direct victim" cases, there exists a duty to avoid negligently causing emotional distress to plaintiffs only in the following situations: (1) near-miss accidents where plaintiff was personally at risk; (2) claims against health care providers; (3) claims against environmental polluters; and (4) claims against mortuaries that mishandle human remains. (Cal. Prac. Guide Civ. Pro. Trial Claims and Def. Ch. 2(V)-B.) "Bystander" cases apply to "persons who suffer serious emotional distress as the result of witnessing a family member being physically injured by defendant's negligence." (Ibid.)

Here,

the Court finds that Plaintiffs have failed to allege facts sufficient to constitute a cause of action for Negligent Infliction of Emotional Distress under any of the situations listed above. The Court notes the parties' arguments regarding the element of duty, but declines to reach them in light of the foregoing. Based on the foregoing, the Court finds that Plaintiffs have failed to allege facts sufficient to support a cause of action for Negligent Infliction of Emotional Distress. Accordingly, the Court sustains the demurrer to Plaintiffs' second cause of action.

VI.

Retaliation under Education Code section 44114

Plaintiffs'

third cause of action alleges Retaliation under Education Code section 44114 against Defendant. "In addition to all other penalties provided by law, a person who intentionally engages in acts of reprisal, retaliation, threats, coercion, or

similar acts against a public school employee or applicant for employment with a public school employer for having made a protected disclosure shall be liable in an action for damages brought against him or her by the injured party.” (Ed. Code § 44114, subd. (c) [emphasis added].)

Here,

Defendant argues that Education Code section 44114 is inapplicable because the statute “applies to a public-school employee or applicant for public-school employment who suffers retaliation for making a statutorily protected disclosure or refusing to obey an illegal order. The Complaint alleges that Brianna Garcia was a student and minor, not a public-school employee or applicant for public-school employment. The Complaint does not allege that Brianna Garcia made a protected disclosure within the meaning of the statutory scheme.” (Dem. 13:11–16.)

In

opposition, Plaintiffs argue that “a mistaken statutory citation does not defeat facts stating relief under another theory.” (Dem. Opp. 6:20.) Plaintiffs argue that the facts alleged “closely track *Pinard v. Clatskanie School District 6J* (9th Cir. 2006) 467 F.3d 755, which held that student athletes’ petition and complaints against a coach were protected speech and recognized a [Federal] section 1983 retaliation claim against school officials.” (Id. at 6:21–24.) Plaintiffs therefore argue that “even if the Court finds section 44114 unavailable, the defect is curable and cannot justify dismissal without leave.” (Id. at 7:6–8.)

In reply,

Defendant argues that Plaintiffs “do not defend the statutory claim they actually pleaded. Instead, they ask the Court to treat the allegations as a federal First Amendment retaliation claim under section 1983. That request does not supply the missing elements of the pleaded section 44114 claim.” (Dem. Reply 8:10–12.) The Court agrees.

Based on the foregoing, the Court

finds that Plaintiffs have failed to allege facts sufficient to support a cause of action for Retaliation under Education Code section 44114 against Defendant. Accordingly, the Court sustains the demurrer to Plaintiffs’ third cause of action.

VII.

Civil Conspiracy

Plaintiffs' fourth cause of action

alleges Civil Conspiracy against Defendant. "Civil conspiracy is not an independent tort. Instead, it is a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration." (City of Industry v. City of Fillmore (2011) 198 Cal.App.4th 191, 211–212 [internal quotations omitted].) "The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages." (Id. at 212.)

Here, Defendant argues that "Plaintiffs fail to allege facts showing when, where, how, or by whom any alleged agreement was formed. Plaintiffs fail to allege facts showing that Defendant agreed with her minor daughter, any unidentified student, or any Doe defendant to commit vandalism, intimidation, harassment, or any other actionable tort." (Dem. 14:3–6.)

In opposition, Plaintiffs argue that "the Complaint expressly alleges an agreement among Clark, her daughter, and Does to conduct a retaliatory campaign and identifies overt acts: the team ultimatum, targeted social-media post, residential vandalism, Clark's knowledge and ratification, new rules, isolation, threats, and failure to intervene." (Dem. Opp. 7:13–16, citing Compl. ¶¶ 55–58.)

However, as the Court finds that Plaintiffs have failed to allege facts to support actionable tortious conduct with sufficient certainty, the Court likewise finds that Plaintiffs have failed to allege facts sufficient to constitute a cause of action for Civil Conspiracy against Defendant. Accordingly, the Court sustains the demurrer to Plaintiffs' fourth cause of action.

VIII.

Failure to Ensure Safe School Environment
under Education Code section 200

Plaintiffs'

fifth cause of action alleges Failure to Ensure Safe School Environment under Education Code section 200 against Defendant. "It is the policy of the State of

California to afford all persons in public schools, regardless of their disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or any other characteristic that is contained in the definition of hate crimes set forth in Section 422.55 of the Penal Code, including immigration status, equal rights, and opportunities in the educational institutions of the state. The purpose of this chapter is to prohibit acts that are contrary to that policy and to provide remedies that will eliminate these discriminatory acts, including discrimination not just because of one protected trait, but also because of the combination of two or more protected bases.” (Ed. Code § 200.)

Here, Defendant

argues that “Plaintiffs cite no authority—and Defendant is aware of none—recognizing a private cause of action against an individual teacher or coach under Education Code section 200.” (Dem. 14:17–28.) “Plaintiffs do not allege that Brianna Garcia was discriminated against or harassed because of her disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, immigration status, or another characteristic covered by the statutory scheme.” (Id. at 14:19–21.)

Defendant maintains that “Section 200 does not, standing alone, create the general individual tort duty pleaded by Plaintiffs against a teacher or coach for every allegation of bullying, retaliation, or interpersonal conflict.” (Id. at 14:23–25.)

In

opposition, Plaintiffs contend that they “do not ask the Court to invent a freestanding individual remedy under section 200. They allege that Brianna had a broken leg and that Clark adopted rules targeting injured players and excluding them from team interactions. (Compl. ¶¶ 17–20, 64–68.) Those facts at least identify a curable route if further allegations support actual or perceived disability discrimination.” (Dem. Opp. 7:27–8:3.) Plaintiffs assert that they “can replace the section 200 label with the operative state or federal theory supported by the facts, identify the proper defendant for each theory, and clarify the protected characteristic if applicable.” (Id. at 8:6–8.)

In reply,

Defendant argues that “Plaintiffs cannot transform an alleged retaliation dispute into disability discrimination merely because the Complaint also alleges that Brianna had a broken leg.” (Dem. Reply 4:3–4.) “The Complaint does

not allege that Clark discriminated against Brianna because of a protected disability. It alleges that Clark retaliated against Brianna because Brianna participated as a witness in a complaint concerning Clark." (Id. at 9:16–18.) The Court agrees.

Based on the foregoing, the Court finds that Plaintiffs have failed to allege facts sufficient to support a cause of action for Failure to Ensure Safe School Environment under Education Code section 200 against Defendant. Accordingly, the Court sustains the demurrer to Plaintiffs' fifth cause of action.

LEAVE TO AMEND

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Here, the Court notes that this is the first demurrer with motion to strike heard against Plaintiffs' complaint, and further notes that Plaintiffs seek leave to amend to the extent necessary. Therefore, under the Court's liberal policy of granting leave to amend, Plaintiffs are granted 30 days leave to amend the complaint to cure the defects set forth above.

MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

Here, Defendant

seeks to strike Plaintiffs' allegations relating to punitive damages, attorney fees, statutory damages, and emotional distress damages from the complaint. As the Court sustains the demurrer with leave to amend, the motion to strike is therefore moot. (B. F. G. Builders v. Weisner & Coover Co. (1962) 206 Cal.App.2d 752, 758–759 [it is proper procedure for the Court to sustain a demurrer with leave to amend and remove an accompanying motion to strike from the Court's calendar]).

CONCLUSION

The demurrer is sustained with 30 days leave to amend. The motion to strike is moot.